

25STCV29902 25STCV29902

County: los-angeles

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Case Number: 25STCV29902 Hearing Date: July 1, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

wilfredo martinez ramos

;

Plaintiff,

vs.

time banquet hall

, et al.;

Defendants.

Case

No.:

25STCV29902

Hearing

Date:

July
2, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

(1)

defendants

JMMC LLC and yhk llc's demurrer to complaint

(2)

defendants

jmmc llc and yhk llc's motion to strike portions of complaint

MOVING PARTY: Defendants JMMS LLC and YHK LLC

RESPONDING PARTY: Plaintiff Wilfredo Martinez Ramos

(1)

Demurrer

to Complaint

(2)

Motion

to Strike

The court

considered the moving and opposition papers filed in connection with this demurrer
and motion to strike.

DEMURRER TO COMPLAINT

Defendants JMMS LLC and YHK LLC ("Defendants") demur to the fourth,
fifth, and sixth causes of action alleged in plaintiff Wilfredo Martinez Ramos's
("Plaintiff") Complaint on the grounds that they fail to state facts sufficient

to constitute a cause of action against Defendants and are uncertain, ambiguous, and unintelligible.

The court overrules the demurrer to the fourth, fifth, and sixth causes of action on the ground of uncertainty because the Complaint is not uncertain as it is neither ambiguous nor unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) It is clear that the Complaint makes allegations that Plaintiff was physically attacked and assaulted by defendant Omar Grimaldo Pablo ("Pablo") at 482 N Garfield Ave., Montebello, CA 90640 (the "Subject Premises") (Compl., ¶¶ 7-8), Defendants were negligent in that they had a duty to control defendant Pablo and protect Plaintiff from physical and mental harm and they breached that duty (Compl., ¶¶ 35-37), Defendants knew or should have known that defendants Does 1 to 5 were incompetent and unfit which created a particular risk to Plaintiff and harmed Plaintiff (Compl., ¶¶ 41-42), and that Defendants had a duty to maintain, manage, and/or control the Subject Premises and Defendants negligently maintained the Subject Premises because Defendants knew of the dangerous condition, failing to control, monitor, and supervise defendant Pablo, and Defendants failed to protect Plaintiff from harm. (Compl., ¶¶ 48, 49, 51.) (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, ["D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond"] [internal citations and quotations omitted].)

The court sustains Defendant's demurrer to the fourth cause of action for negligence without leave to amend because (1) Plaintiff's negligence cause of action is the same as his premises liability cause of action since Plaintiff alleges that "because of the special relationship between Plaintiff and the subject premises, [Defendants] . . . had a duty to control defendant Pablo and protect Plaintiff from physical and mental harm" which is the same theory of liability for the premises cause of action (Compl., ¶¶ 35, 48, 51, 52) and (2) as discussed below, it does not state facts sufficient to constitute a cause of action since Plaintiff fails to allege that Defendants had a duty of care to Plaintiff. (Code Civ. Proc., § 430.10, subd. (e); County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318 ["The elements of a negligence cause of action are duty, breach, causation and damages"]; See Rodrigues v. Campbell Industries (1978) 87 Cal.App.3d 494, 501 [demurrer was properly sustained without leave to amend as to cause of action that contained allegations of other causes and "thus add[ed] nothing to the complaint by way of fact or theory of recovery"].)

The court sustains Defendants' demurrer to the fifth cause of action for negligent hiring, supervision, and retention because it does not state facts sufficient to constitute a cause of action since Plaintiff has failed to allege any facts to show that defendants Does 1 to 5 were incompetent or unfit or had characteristics which might pose a danger to customers or other employees. (Compl., ¶¶ 41-42.) (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139 ["An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit. . . . Liability for negligent hiring ... is based upon the reasoning that if an enterprise hires individuals with characteristics which might pose a danger to customers or other employees, the enterprise should bear the loss caused by the wrongdoing of its incompetent or unfit employees Negligence liability will be imposed on an employer if it knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes"].)

The court sustains Defendants' demurrer to the sixth cause of action for premises liability because it does not state facts sufficient to constitute a cause of action since Defendants as owners of the Subject Premises did not owe a duty to Plaintiff to keep him safe from third parties present in the Subject Premises as it is not foreseeable that a third party patron would attack another patron. (Code Civ. Proc., § 430.10, subd. (e); Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619 ["Premises liability is a form of negligence based on the holding in Rowland v. Christian, supra, 69 Cal.2d 108, 70 Cal.Rptr. 97, 443 P.2d 561 and is described as follows: The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence"]; Id. at p. 1620 ["[A] court's task—in determining duty—is not to decide whether a particular plaintiff's injury was reasonably foreseeable in light of a particular defendant's conduct, but rather to evaluate more generally whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed on the negligent party"]; Williams v. Fremont Corners, Inc. (2019) 37 Cal.App.5th 654, 663–664 ["In the case of a landlord, however, the general duty of maintenance that is owed to tenants and patrons has been held to include the duty to take reasonable steps to secure common areas against foreseeable criminal acts of third parties that are likely to occur in the absence of such precautionary measures"]; .)

“[T]he scope of the duty is determined in part by balancing the foreseeability of the harm against the burden of the duty to be imposed. . . . [I]n cases where the burden of preventing future harm is great, a high degree of foreseeability may be required. [Citation.] On the other hand, in cases where there are strong policy reasons for preventing the harm, or the harm can be prevented by simple means, a lesser degree of foreseeability may be required. [Citation.] Or, as one appellate court has accurately explained, duty in such circumstances is determined by a balancing of foreseeability of the criminal acts against the burdensomeness, vagueness, and efficacy of the proposed security measures.” (Ann M. v.

Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 678–679 [disapproved of by Reid v. Google, Inc. (2010) 50 Cal.4th 512 on other grounds] [internal quotations and citations omitted].)

Here, there are no facts that indicate that an attack of one patron on another is foreseeable or that any security measures that Defendants failed to take would have prevented such an attack.

MOTION TO STRIKE PORTIONS OF COMPLAINT

Defendants

move to strike portions of Plaintiff’s Complaint on the grounds that (1) the Complaint contains collective allegations against all defendants without specifying conduct by Defendants, (2) the Complaint alleges conclusory and unsupported allegations regarding ownership, operation, management, and control of the Subject Premises, and (3) the Complaint seeks relief against Defendants that is not supported by facts and not recoverable as a matter of law. The court denies the motion to strike as moot because the demurrer to the fourth, fifth, and sixth causes of action is sustained.

ORDER

The court sustains defendants JMMS LLC and YHK LLC’s demur to the fourth cause of action of plaintiff Wilfredo Martinez Ramos’s Complaint without leave to amend.

The court sustains defendants JMMS LLC and YHK LLC’s demurrer to the fifth and sixth causes of action of plaintiff Wilfredo Martinez Ramos’s Complaint with leave to amend.

The court grants plaintiff Wilfredo Martinez Ramos 20 days leave to amend the fifth and sixth causes of action to

cure the defects set forth in this order.

The court denies defendants JMMS LLC
and YHK LLC's motion to strike portions of plaintiff Wilfredo Martinez's
Complaint as moot.

The court orders defendants JMMS LLC
and YHK LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 2, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court